

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 16, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
LINE 1	26CV49241 6	3901 North First, LLC c/o Prospecthill Group vs Continental Automotive Systems, Inc.	Application for <i>Pro Hac Vice</i> Counsel <u>I. BACKGROUND</u> On June 17, 2026, Defendant Continental Automotive Systems, Inc. (“Continental”) filed this unopposed application for Isaiah A. Fishman to be admitted as <i>pro hac vice</i> counsel. Defendant Continental filed a proof of service indicating electronic service on that same day. No opposition papers were filed by the plaintiff. Per Code of Civil Procedure section 1005(b), opposition papers were due on July 2, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>II. LEGAL STANDARD</u> Pursuant to California Rule of Court, rule 9.40(a), for an out-of-state lawyer, not admitted to practice in California may apply for <i>pro hac vice</i> admission. The application must include the following: (1) the applicant must be admitted to practice before a U.S. court, or the highest court of any state or territory; (2) he or she must not be a California resident, nor regularly engaged in practice or other business here; and (3) a member of the California Bar must be associated as attorney of record in the case. A verified application must be filed stating (1) the applicant's residence and office addresses; (2) the court or courts in which he or she is admitted to practice and the dates of admission; (3) that he or she is currently in good standing in such courts; (4) that he or she has not been suspended or disbarred in any court; (5) the title and case number of any California action in which he or she has applied to appear <i>pro hac vice</i> during the preceding

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LAW AND MOTION TENTATIVE RULINGS

		two years, the date of each application, and whether or not it was granted; and (6) the name, address and telephone number of the active member of the State Bar who is attorney of record. (Cal. Rule Court, Rule 9.40(d)—filing fee must accompany application). Copies of the application must be served by mail upon all parties who have appeared in the action, and also upon the State Bar at its San Francisco office at least 16 court days before the hearing under Code of Civil Procedure section 1005. III. <u>ANALYSIS</u> Here, the verified application to admit Isaiah A. Fishman, who is a member of the Illinois State Bar complies with Rule of Court, rule 9.40. IV. <u>CONCLUSION</u> Based on the foregoing, the unopposed application for admission of Isaiah A. Fishman <i>pro hac vice</i> on behalf of Defendant Continental is GRANTED. The Court executed the proposed order that was attached to the Application.
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9:00 A.M.

Calendar Lines # 6-7

Case Name Maria Ruiz vs Toyota Motor Sales, U.S.A., Inc et al

Case No. 25CV471084

Demurrer (Line #6) and Motion to Strike (Line # 7)

Before the court is the (1) demurrer of defendant Toyota Motor Sales, U.S.A., Inc. to plaintiff's complaint; and (Line # 6); and (2) defendant Toyota Motor Sales, U.S.A., Inc.'s motion to strike to plaintiff's prayer for punitive damages (Line #7). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. The Background portion is addressed in the Demurrer analysis.

DEMURRER (LINE #6)

I. BACKGROUND

On or about October 15, 2022, plaintiff Maria Moreno Ruiz ("Ruiz") entered into a warranty contract with defendant Toyota Motor Sales, U.S.A., Inc. ("Toyota") regarding a 2022 Toyota Tundra vehicle ("Subject Vehicle") manufactured and/or distributed by defendant Toyota. (Complaint, ¶¶7 – 8 and Exh. A).

Defects and nonconformities to warranty manifested themselves within the applicable express warranty period including, but not limited to, engine defects, transmission defects, electrical defects, among other defects and non-conformities. (Complaint, ¶12).

Plaintiff Ruiz alleges defendant Toyota concealed a known defect from her. (Complaint, ¶52). The 3.4L engine and/or its related components installed in the Subject Vehicle suffer from one or more defects that can result in the loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine ("Engine Defect"). (Complaint, ¶53). Prior to sale of the Subject Vehicle, defendant Toyota knew or should have known about the Engine Defect through its exclusive knowledge of non-public, internal data including pre-release test data, early consumer complaints to defendant Subaru's dealers, dealership repair orders, testing conducted in response to complaints, and other internal sources of information possessed exclusively by defendant Toyota and its agents. (Complaint, ¶¶57, 59, 62, 63, 64, 65, 76). Nevertheless, defendant Toyota and its agents actively concealed the Engine Defect and failed to disclose this defect to plaintiff at the time of her purchase of the Subject Vehicle or thereafter. (*Id.*) Defendant Toyota either refused to acknowledge the existence of the defects or performed superficial and ineffectual repairs that masked the symptoms of the Engine Defect. (Complaint, ¶¶59, 75, 77, 78). If plaintiff knew about these defects at the time of sale, plaintiff would not have purchased the Subject Vehicle. (Complaint, ¶60).

On July 22, 2025, plaintiff Ruiz filed a complaint against defendants Toyota and Capitol Toyota/Scion asserting causes of action for:

- (1) Violation of Subdivision (d) of Civil Code Section 1793.2 [against defendant Toyota]
- (2) Violation of Subdivision (b) of Civil Code Section 1793.2 [against defendant Toyota]
- (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2 [against defendant Toyota]
- (4) Breach of the Implied Warranty of Merchantability [against defendant Toyota]
- (5) Negligent Repair [against defendant Capitol Toyota/Scion]
- (6) Fraudulent Inducement – Concealment [against defendant Toyota]